

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1239

By: Haste of the Senate

and

6 Miller and **Dollens** of the
7 House

8
9 An Act relating to Service Oklahoma; amending 47 O.S.
10 2021, Section 1104, as last amended by Section 18,
11 Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section
12 1104), which relates to apportionment; amending,
13 merging, consolidating, and repealing multiple
14 versions of statute; modifying termination date of
15 certain apportionment; updating statutory language;
16 repealing 47 O.S. 2021, Section 1104, as last amended
17 by Section 7, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
18 2025, Section 1104), which relates to apportionment;
19 and declaring an emergency.

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24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1104, as
last amended by Section 18, Chapter 330, O.S.L. 2025 (47 O.S. Supp.
2025, Section 1104), is amended to read as follows:

Section 1104. A. Unless otherwise provided by law, all fees,
taxes, and penalties collected or received pursuant to the Oklahoma
Vehicle License and Registration Act or Section 1-101 et seq. of
this title shall be apportioned and distributed monthly by ~~the~~

1 ~~Oklahoma Tax Commission~~ Service Oklahoma in accordance with this
2 section. Service Oklahoma shall provide to the Oklahoma Tax
3 Commission monthly reports of ~~motor vehicle collection information,~~
4 ~~including, but not limited to, motor vehicle monthly apportionment~~
5 ~~information, refunds, canceled vouchers,~~ waste tire collections,
6 ~~organ donor program amounts, driver license records, prorated~~
7 ~~amounts,~~ and sales tax amounts. The reports shall be delivered
8 electronically pursuant to the current calendar year apportionment
9 disbursement schedule provided to Service Oklahoma by the Oklahoma
10 Tax Commission on or before December ~~1st~~ 1 annually.

11 One percent (1%) of the monies referred to in this section shall
12 be apportioned to the Licensed Operator Performance Fund created in
13 Section 3-106 of this title, in accordance with the applicable
14 metrics determined by Service Oklahoma.

15 B. 1. The following percentages of the monies referred to in
16 subsection A of this section shall be apportioned to the various
17 school districts in accordance with paragraph 2 of this subsection:

- 18 a. from October 1, 2000, until June 30, 2001, thirty-five
19 and forty-six one-hundredths percent (35.46%),
20 b. for the year beginning July 1, 2001, and ending June
21 30, 2002, thirty-five and ninety-one one-hundredths
22 percent (35.91%),
23
24

- 1 c. for the year beginning July 1, 2002, through the year
2 ending on June 30, 2015, thirty-six and twenty one-
3 hundredths percent (36.20%),
- 4 d. for the year beginning July 1, 2015, through the year
5 ending on June 30, 2019, thirty-six and twenty one-
6 hundredths percent (36.20%), but in no event shall the
7 amount apportioned in any fiscal year pursuant to this
8 subparagraph exceed the total amount apportioned for
9 the fiscal year ending on June 30, 2015. Any amounts
10 in excess of such limitation shall be placed to the
11 credit of the General Revenue Fund, and
- 12 e. for the year beginning July 1, 2019, and all
13 subsequent years, thirty-six and twenty one-hundredths
14 percent (36.20%), but in no event shall the amount
15 apportioned in any fiscal year pursuant to this
16 subparagraph exceed the total amount apportioned for
17 the fiscal year ending on June 30, 2015. Any amounts
18 in excess of such limitation shall be placed to the
19 credit of the Rebuilding Oklahoma Access and Driver
20 Safety Fund created in Section 1521 of Title 69 of the
21 Oklahoma Statutes.

22 2. The monies apportioned pursuant to subparagraphs a through e
23 of paragraph 1 of this subsection shall be apportioned to the
24 various school districts so that each district shall receive an

1 amount based upon the proportion that each district's average daily
2 attendance bears to the total average daily attendance of those
3 districts entitled to receive funds pursuant to this section as
4 certified by the State Department of Education.

5 Each district's allocation of funds shall be remitted to the
6 county treasurer of the county wherein the administrative
7 headquarters of the district ~~are~~ is located.

8 No district shall be eligible for the funds herein provided
9 unless the district makes an ad valorem tax levy of fifteen (15)
10 mills and maintains nine (9) years of instruction and pursuant to
11 the rules of the State Board of Education, is authorized to maintain
12 ten (10) years of instruction.

13 C. The following percentages of the monies referred to in
14 subsection A of this section shall be remitted to the State
15 Treasurer to be credited to the General Revenue Fund of the State
16 Treasury:

17 1. From October 1, 2000, until June 30, 2001, forty-five and
18 ninety-seven one-hundredths percent (45.97%);

19 2. For the year beginning July 1, 2001, and ending June 30,
20 2002, forty-five and twenty-nine one-hundredths percent (45.29%);

21 3. For the year beginning July 1, 2002, and for the subsequent
22 fiscal years ending June 30, 2007, forty-four and eighty-four one-
23 hundredths percent (44.84%);

1 4. For the year beginning July 1, 2007, and ending June 30,
2 2008, thirty-nine and eighty-four one-hundredths percent (39.84%);

3 5. For the year beginning July 1, 2008, and ending June 30,
4 2009, thirty-four and eighty-four one-hundredths percent (34.84%);

5 6. For the period beginning July 1, 2009, and ending December
6 31, 2012, twenty-nine and eighty-four one-hundredths percent
7 (29.84%);

8 7. For the period beginning January 1, 2013, and ending June
9 30, 2013, twenty-nine and thirty-four one-hundredths percent
10 (29.34%);

11 8. For the year beginning July 1, 2013, and ending June 30,
12 2014, twenty-six and eighty-four one-hundredths percent (26.84%);
13 and

14 9. For the year beginning July 1, 2014, through the year ending
15 June 30, 2019, twenty-four and eighty-four one-hundredths percent
16 (24.84%).

17 D. The following percentages of the monies referred to in
18 subsection A of this section shall be remitted to the State
19 Treasurer to be credited to the State Transportation Fund:

20 1. From October 1, 2000, until June 30, 2001, thirty one-
21 hundredths percent (0.30%);

22 2. For the year beginning July 1, 2001, through the year ending
23 on June 30, 2015, thirty-one one-hundredths percent (0.31%);
24

1 3. For the year beginning July 1, 2015, through the year ending
2 on June 30, 2019, thirty-one one-hundredths percent (0.31%), but in
3 no event shall the amount apportioned in any fiscal year pursuant to
4 this paragraph exceed the total amount apportioned for the fiscal
5 year ending on June 30, 2015. Any amounts in excess of such
6 limitation shall be placed to the credit of the General Revenue
7 Fund; and

8 4. For the year beginning July 1, 2019, and all subsequent
9 years, thirty-one one-hundredths percent (0.31%), but in no event
10 shall the amount apportioned in any fiscal year pursuant to this
11 paragraph exceed the total amount apportioned for the fiscal year
12 ending on June 30, 2015. Any amounts in excess of such limitation
13 shall be placed to the credit of the Rebuilding Oklahoma Access and
14 Driver Safety Fund created in Section 1521 of Title 69 of the
15 Oklahoma Statutes.

16 E. 1. The following percentages of the monies referred to in
17 subsection A of this section shall be apportioned to the various
18 counties as set forth in paragraph 2 of this subsection:

19 a. from October 1, 2000, until June 30, 2001, seven and
20 nine one-hundredths percent (7.09%),

21 b. for the year beginning July 1, 2001, and ending June
22 30, 2002, seven and eighteen one-hundredths percent
23 (7.18%),
24

- 1 c. for the year beginning July 1, 2002, through the year
2 ending on June 30, 2015, seven and twenty-four one-
3 hundredths percent (7.24%),
- 4 d. for the year beginning July 1, 2015, through the year
5 ending on June 30, 2019, seven and twenty-four one-
6 hundredths percent (7.24%), but in no event shall the
7 amount apportioned in any fiscal year pursuant to this
8 subparagraph exceed the total amount apportioned for
9 the fiscal year ending on June 30, 2015. Any amounts
10 in excess of such limitation shall be placed to the
11 credit of the General Revenue Fund, and
- 12 e. for the year beginning July 1, 2019, and all
13 subsequent years, seven and twenty-four one-hundredths
14 percent (7.24%), but in no event shall the amount
15 apportioned in fiscal years 2019 through 2024 pursuant
16 to this subparagraph exceed the total amount
17 apportioned for the fiscal year ending on June 30,
18 2015, and in no event shall the amount apportioned in
19 fiscal year 2026 and subsequent fiscal years exceed
20 the amount apportioned for the fiscal year ending on
21 June 30, 2025. Any amounts in excess of such
22 limitation shall be placed to the credit of the
23 Rebuilding Oklahoma Access and Driver Safety Fund
24

1 created in Section 1521 of Title 69 of the Oklahoma
2 Statutes.

3 2. The monies apportioned pursuant to subparagraphs a through e
4 of paragraph 1 of this subsection shall be apportioned as follows:
5 forty percent (40%) of such sum shall be distributed to the various
6 counties in that proportion which the county road mileage of each
7 county bears to the entire state road mileage as certified by the
8 Transportation Commission and the remaining sixty percent (60%) of
9 such sum shall be distributed to the various counties ~~on the basis~~
10 in the proportion which the population and area of each county bears
11 to the total population and area of the state. The population shall
12 be as shown by the last Federal Decennial Census or the most recent
13 annual estimate provided by the United States Bureau of the Census.
14 The funds shall be used for the purpose of constructing and
15 maintaining county highways; provided, however, the county treasurer
16 may deposit so much of the funds in the sinking fund as may be
17 necessary for the retirement of interest and annual accrual of
18 indebtedness created by the issuance of county or township bonds for
19 road purposes. Such deposits to the sinking fund shall not exceed
20 forty percent (40%) of the funds allocated to a county pursuant to
21 this paragraph.

22 F. 1. The following percentages of the monies referred to in
23 subsection A of this section shall be remitted to the county
24 treasurers of the respective counties and by them deposited in a

1 separate special revenue fund to be used by the county commissioners
2 in accordance with paragraph 2 of this subsection:

3 a. from October 1, 2000, until June 30, 2001, two and
4 fifty-three one-hundredths percent (2.53%),

5 b. for the year beginning July 1, 2001, and ending June
6 30, 2002, two and fifty-six one-hundredths percent
7 (2.56%),

8 c. for the year beginning July 1, 2002, through the year
9 ending on June 30, 2015, two and fifty-nine one-
10 hundredths percent (2.59%),

11 d. for the year beginning July 1, 2015, through the year
12 ending on June 30, 2019, two and fifty-nine one-
13 hundredths percent (2.59%), but in no event shall the
14 amount apportioned in any fiscal year pursuant to this
15 subparagraph exceed the total amount apportioned for
16 the fiscal year ending on June 30, 2015. Any amounts
17 in excess of such limitation shall be placed to the
18 credit of the General Revenue Fund, and

19 e. for the year beginning July 1, 2019, and all
20 subsequent years, two and fifty-nine one-hundredths
21 percent (2.59%), but in no event shall the amount
22 apportioned in fiscal years 2019 through 2024 pursuant
23 to this subparagraph exceed the total amount
24 apportioned for the fiscal year ending on June 30,

1 2015, and in no event shall the amount apportioned in
2 fiscal year 2026 and subsequent fiscal years exceed
3 the amount apportioned for the fiscal year ending on
4 June 30, 2025. Any amounts in excess of such
5 limitation shall be placed to the credit of the
6 Rebuilding Oklahoma Access and Driver Safety Fund
7 created in Section 1521 of Title 69 of the Oklahoma
8 Statutes.

9 2. The monies apportioned pursuant to subparagraphs a through e
10 of paragraph 1 of this subsection shall be used for the primary
11 purpose of matching federal funds for the construction of federal
12 aid projects on county roads, or constructing and maintaining county
13 or township highways and permanent bridges of such counties. The
14 distribution of monies apportioned by this paragraph shall be made
15 upon the basis of the current formula based upon road mileage, area,
16 and population as related to county road improvement and maintenance
17 costs. Provided, however, the Department of Transportation may
18 update the formula factors from time to time as necessary to account
19 for changing conditions.

20 G. 1. The following percentages of the monies referred to in
21 subsection A of this section shall be transmitted by ~~the Tax~~
22 ~~Commission~~ Service Oklahoma to the various counties as set forth in
23 paragraph 2 of this subsection:

- 1 a. from October 1, 2000, until June 30, 2001, three and
2 fifty-five one-hundredths percent (3.55%),
- 3 b. for the year beginning July 1, 2001, and ending June
4 30, 2002, three and fifty-nine one-hundredths percent
5 (3.59%),
- 6 c. for the year beginning July 1, 2002, through the year
7 ending on June 30, 2015, three and sixty-two one-
8 hundredths percent (3.62%),
- 9 d. for the year beginning July 1, 2015, through the year
10 ending on June 30, 2019, three and sixty-two one-
11 hundredths percent (3.62%), but in no event shall the
12 amount apportioned in any fiscal year pursuant to this
13 subparagraph exceed the total amount apportioned for
14 the fiscal year ending on June 30, 2015. Any amounts
15 in excess of such limitation shall be placed to the
16 credit of the General Revenue Fund, and
- 17 e. for the year beginning July 1, 2019, and all
18 subsequent years, three and sixty-two one-hundredths
19 percent (3.62%), but in no event shall the amount
20 apportioned in fiscal years 2019 through 2024 pursuant
21 to this subparagraph exceed the total amount
22 apportioned for the fiscal year ending on June 30,
23 2015, and in no event shall the amount apportioned in
24 fiscal year 2026 and subsequent fiscal years exceed

1 the amount apportioned for the fiscal year ending on
2 June 30, 2025. Any amounts in excess of such
3 limitation shall be placed to the credit of the
4 Rebuilding Oklahoma Access and Driver Safety Fund
5 created in Section 1521 of Title 69 of the Oklahoma
6 Statutes.

7 2. The monies apportioned pursuant to subparagraphs a through e
8 of paragraph 1 of this subsection shall be transmitted to the
9 various counties on the basis of a formula to be developed by the
10 Department of Transportation. Such formula shall be similar to that
11 currently used for the distribution of County Bridge Program funds,
12 but also taking into consideration the effect of terrain and traffic
13 volume as related to county road improvement and maintenance costs.
14 Provided, however, the Department of Transportation may update the
15 formula factors from time to time as necessary to account for
16 changing conditions. The funds shall be transmitted to the various
17 county treasurers to be deposited in the county highway fund of
18 their respective counties.

19 H. 1. The following percentages of the monies referred to in
20 subsection A of this section shall be apportioned to the various
21 counties as set forth in paragraph 2 of this subsection:

22 a. from October 1, 2000, until June 30, 2001, eighty-one
23 one-hundredths percent (0.81%),
24

- 1 b. for the year beginning July 1, 2001, and ending June
2 30, 2002, eighty-two one-hundredths percent (0.82%),
3 c. for the year beginning July 1, 2002, through the year
4 ending on June 30, 2015, eighty-three one-hundredths
5 percent (0.83%),
6 d. for the year beginning July 1, 2015, through the year
7 ending on June 30, 2019, eighty-three one-hundredths
8 percent (0.83%), but in no event shall the amount
9 apportioned in any fiscal year pursuant to this
10 subparagraph exceed the total amount apportioned for
11 the fiscal year ending on June 30, 2015. Any amounts
12 in excess of such limitation shall be placed to the
13 credit of the General Revenue Fund, and
14 e. for the year beginning July 1, 2019, and all
15 subsequent years, eighty-three one-hundredths percent
16 (0.83%), but in no event shall the amount apportioned
17 in any fiscal year pursuant to this subparagraph
18 exceed the total amount apportioned for the fiscal
19 year ending on June 30, 2015. Any amounts in excess
20 of such limitation shall be placed to the credit of
21 the Rebuilding Oklahoma Access and Driver Safety Fund
22 created in Section 1521 of Title 69 of the Oklahoma
23 Statutes.

1 2. The monies apportioned pursuant to subparagraphs a through e
2 of paragraph 1 of this subsection shall be apportioned to the
3 various counties based upon the proportion that each county's
4 population bears to the total state population.

5 Each county's allocation of funds shall be remitted to the
6 various county treasurers to be deposited in the general fund of the
7 county and used for the support of county government.

8 I. 1. The following percentages of the monies referred to in
9 subsection A of this section shall be apportioned to the various
10 cities and incorporated towns as set forth in paragraph 2 of this
11 subsection:

12 a. from October 1, 2000, until June 30, 2001, three and
13 four one-hundredths percent (3.04%),

14 b. for the year beginning July 1, 2001, and ending June
15 30, 2002, three and eight one-hundredths percent
16 (3.08%),

17 c. for the year beginning July 1, 2002, through the year
18 ending on June 30, 2015, three and ten one-hundredths
19 percent (3.10%),

20 d. for the year beginning July 1, 2015, through the year
21 ending on June 30, 2019, three and ten one-hundredths
22 percent (3.10%), but in no event shall the amount
23 apportioned in any fiscal year pursuant to this
24 subparagraph exceed the total amount apportioned for

1 the fiscal year ending on June 30, 2015. Any amounts
2 in excess of such limitation shall be placed to the
3 credit of the General Revenue Fund, and

4 e. for the year beginning July 1, 2019, and all
5 subsequent years, three and ten one-hundredths percent
6 (3.10%), but in no event shall the amount apportioned
7 in any fiscal year pursuant to this subparagraph
8 exceed the total amount apportioned for the fiscal
9 year ending on June 30, 2015. Any amounts in excess
10 of such limitation shall be placed to the credit of
11 the Rebuilding Oklahoma Access and Driver Safety Fund
12 created in Section 1521 of Title 69 of the Oklahoma
13 Statutes.

14 2. The monies apportioned pursuant to subparagraphs a through e
15 of paragraph 1 of this subsection shall be apportioned to the
16 various cities and incorporated towns based upon the proportion that
17 each city or incorporated town's population bears to the total
18 population of all cities and incorporated towns in the state. Such
19 funds shall be remitted to the various county treasurers for
20 allocation to the various cities and incorporated towns. All such
21 funds shall be used for the construction, maintenance, repair,
22 improvement, and lighting of streets and alleys. Provided, however,
23 the governing board of any city or town may, with the approval of
24 the county excise board, transfer any surplus funds to the general

1 revenue fund of such city or town whenever an emergency requires
2 such a transfer.

3 J. The following percentages of the monies referred to in
4 subsection A of this section shall be remitted to the State
5 Treasurer to be credited to the Oklahoma Law Enforcement Retirement
6 Fund:

7 1. From October 1, 2000, until June 30, 2001, one and twenty-
8 two one-hundredths percent (1.22%);

9 2. For the year beginning July 1, 2001, and ending June 30,
10 2002, one and twenty-three one-hundredths percent (1.23%); and

11 3. For the year beginning July 1, 2002, and all subsequent
12 years, one and twenty-four one-hundredths percent (1.24%).

13 K. Three one-hundredths of one percent (3/100 of 1%) of the
14 monies referred to in subsection A of this section shall be remitted
15 to the State Treasurer to be credited to the Wildlife Conservation
16 Fund. Seventy-five percent (75%) of the funds shall be used for
17 fish habitat restoration and twenty-five percent (25%) of the funds
18 shall be used in the fish hatchery system for fish production.

19 L. 1. For the year beginning July 1, 2007, and ending June 30,
20 2008, five percent (5%) of monies referred to in subsection A of
21 this section shall be remitted to the State Treasurer to be credited
22 to the County Improvements for Roads and Bridges Fund as created in
23 Section 507 of Title 69 of the Oklahoma Statutes.

1 2. For the year beginning July 1, 2008, and ending June 30,
2 2009, ten percent (10%) of monies referred to in subsection A of
3 this section shall be remitted to the State Treasurer to be credited
4 to the County Improvements for Roads and Bridges Fund as created in
5 Section 507 of Title 69 of the Oklahoma Statutes.

6 3. For the period beginning July 1, 2009, and ending December
7 31, 2012, fifteen percent (15%) of monies referred to in subsection
8 A of this section shall be remitted to the State Treasurer to be
9 credited to the County Improvements for Roads and Bridges Fund as
10 created in Section 507 of Title 69 of the Oklahoma Statutes.

11 4. For the period beginning January 1, 2013, and ending June
12 30, 2013, fifteen and fifty one-hundredths percent (15.50%) of
13 monies referred to in subsection A of this section shall be remitted
14 to the State Treasurer to be credited to the County Improvements for
15 Roads and Bridges Fund as created in Section 507 of Title 69 of the
16 Oklahoma Statutes.

17 5. For the year beginning July 1, 2013, and ending June 30,
18 2014, eighteen percent (18%) of monies referred to in subsection A
19 of this section shall be remitted to the State Treasurer to be
20 credited to the County Improvements for Roads and Bridges Fund as
21 created in Section 507 of Title 69 of the Oklahoma Statutes.

22 6. For the year beginning July 1, 2014, twenty percent (20%) of
23 monies referred to in subsection A of this section shall be remitted
24 to the State Treasurer to be credited to the County Improvements for

1 Roads and Bridges Fund as created in Section 507 of Title 69 of the
2 Oklahoma Statutes.

3 7. For the year beginning July 1, 2015, through the year ending
4 on June 30, 2019, twenty percent (20%) of monies referred to in
5 subsection A of this section shall be remitted to the State
6 Treasurer to be credited to the County Improvements for Roads and
7 Bridges Fund as created in Section 507 of Title 69 of the Oklahoma
8 Statutes, but in no event shall the total amount apportioned in any
9 fiscal year pursuant to this paragraph exceed One Hundred Twenty
10 Million Dollars (\$120,000,000.00). Any amounts in excess of One
11 Hundred Twenty Million Dollars (\$120,000,000.00) shall be placed to
12 the credit of the General Revenue Fund.

13 8. a. Except as provided in subparagraph b of this
14 paragraph, for the year beginning July 1, 2019, and
15 all subsequent years, twenty percent (20%) of monies
16 referred to in subsection A of this section shall be
17 remitted to the State Treasurer to be credited to the
18 County Improvements for Roads and Bridges Fund as
19 created in Section 507 of Title 69 of the Oklahoma
20 Statutes, but in no event shall the total amount
21 apportioned in any fiscal year pursuant to this
22 paragraph exceed the fiscal year limitations provided
23 in subparagraph c of this paragraph. Any amounts in
24 excess of the fiscal year limitations provided in

1 subparagraph c of this paragraph shall be placed to
2 the credit of the Rebuilding Oklahoma Access and
3 Driver Safety Fund created in Section 1521 of Title 69
4 of the Oklahoma Statutes~~7.~~

5 b. (1) ~~for~~ For the fiscal year beginning July 1, 2021,
6 through the fiscal year ending June 30, ~~2026~~
7 2031, the Oklahoma Tax Commission shall remit
8 twenty-five percent (25%) of the monthly
9 allocation, otherwise scheduled to be credited to
10 the County Improvements for Roads and Bridges
11 Fund, to the various counties of the state. The
12 Commission shall distribute such funds monthly to
13 each county treasurer as follows:

14 (a) one-third (1/3) of such funds shall be
15 distributed to the various counties in the
16 proportion which the area of each county
17 bears to the total area of the state,

18 (b) one-third (1/3) of such funds shall be
19 distributed to the various counties in the
20 proportion which the certified county road
21 miles of each county bear to the total sum
22 of county road miles in the state, and

23 (c) one-third (1/3) of such funds shall be
24 distributed to the various counties in the

1 proportion which the total replacement cost
2 for obsolete or deficient bridges according
3 to the most recent Department of
4 Transportation yearly Bridge Summary Report
5 for County Bridges for each county bears to
6 the total amount of such cost for all such
7 county bridges in the state, ~~and.~~

8 (2) ~~for~~ For the fiscal year beginning July 1, 2026
9 2031, and all subsequent fiscal years thereafter,
10 ~~the Oklahoma Tax Commission~~ Service Oklahoma
11 shall remit twenty-five percent (25%) of the
12 monthly allocation, otherwise scheduled to be
13 credited to the County Improvements for Roads and
14 Bridges Fund, to the various counties of the
15 state. ~~The Commission~~ Service Oklahoma shall
16 distribute such funds monthly to each county
17 treasurer as follows:

18 (a) one-third (1/3) of such funds shall be
19 distributed to the various counties in the
20 proportion which the area of each county
21 bears to the total area of the state,

22 (b) one-third (1/3) of such funds shall be
23 distributed to the various counties in the
24 proportion which the certified county road

1 miles of each county bear to the total sum
2 of county road miles in the state, and
3 (c) one-third (1/3) of such funds shall be
4 distributed to the various counties in the
5 proportion which the number of county
6 bridges in each county according to the
7 Department of Transportation 2020 Bridge
8 Summary Report for County Bridges bears to
9 the total sum of county bridges in the state
10 according to such report.

11 Each county treasurer shall deposit such funds to the
12 county's county highway fund and such funds shall be used
13 for maintenance and operations. In no event shall the
14 total amount apportioned in any fiscal year pursuant to the
15 provisions of subparagraphs a and b of this paragraph
16 exceed the fiscal year limitations provided in subparagraph
17 c of this paragraph, ~~and.~~

18 c. ~~the~~ The total amount apportioned each fiscal year
19 pursuant to this paragraph shall be limited as
20 follows:

- | | | |
|----|---------------------------|-------------------|
| 21 | (1) for fiscal years 2020 | |
| 22 | through 2022 | \$120,000,000.00, |
| 23 | (2) for fiscal year 2023 | \$125,000,000.00, |
| 24 | (3) for fiscal year 2024 | \$130,000,000.00, |

(4) for fiscal year 2025 \$135,000,000.00,
(5) for fiscal year 2026 \$140,000,000.00,
(6) for fiscal year 2027 \$145,000,000.00,
(7) for fiscal year 2028 and all
subsequent fiscal years
thereafter \$150,000,000.00.

M. Twenty-four and eighty-four one-hundredths percent (24.84%)
of the monies referred to in subsection A of this section shall be
remitted to the State Treasurer to be credited to the Rebuilding
Oklahoma Access and Driver Safety Fund created in Section 1521 of
Title 69 of the Oklahoma Statutes.

N. Monies allocated to counties by this section may be
estimated by the county excise board in the budget for the county as
anticipated revenue to the extent of ninety percent (90%) of the
previous year's income from such source; provided, not more than
fifteen percent (15%) can be encumbered during any month.

O. ~~Notwithstanding any other provisions of this section, for
the fiscal year beginning July 1, 2003, the first One Hundred
Thousand Dollars (\$100,000.00) of the monies collected or received
by the Tax Commission pursuant to the registration of motorcycles
and mopeds in this state shall be placed to the credit of the
Oklahoma Tax Commission Revolving Fund. Beginning January 1, 2023,
the first One Hundred Thousand Dollars (\$100,000.00) of the monies
collected or received by Service Oklahoma pursuant to the~~

1 registration of motorcycles and mopeds in this state shall be placed
2 to the credit of the Service Oklahoma Revolving Fund.

3 SECTION 2. REPEALER 47 O.S. 2021, Section 1104, as last
4 amended by Section 7, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
5 Section 1104), is hereby repealed.

6 SECTION 3. It being immediately necessary for the preservation
7 of the public peace, health or safety, an emergency is hereby
8 declared to exist, by reason whereof this act shall take effect and
9 be in full force from and after its passage and approval.

10
11 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
12 04/23/2026 - DO PASS, As Coauthored.

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